

required to be served on or before April 2, 2026. Valuation One's Proof of Service indicates that the supporting papers were served on April 4, 2026 – two days after the required deadline.

Not only did Plaintiff not consent to a shortened notice period for Valuation One's MSJ, but she also specifically objects to the lack of the minimum statutory notice. (Opp. at III B.)

Conclusion

Valuation One failed to provide the required minimum statutory notice. As the required notice can only be waived if the opposing party specifically consents to lesser notice and Plaintiff does not so consent, the MSJ is **denied**.

15. 9:00 AM CASE NUMBER: MSC21-02685

CASE NAME: GOEDKEN VS. EAST BAY INTEGRATED CARE

***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT**

FILED BY: GOEDKEN, CHELCIE M

TENTATIVE RULING:

Summary

Plaintiffs Chelcie Goedke and Hope Hilton ("Plaintiffs") Motion for Preliminary Approval of Class Action and PAGA Settlement is granted as set forth in this tentative ruling. No appearance is required at the hearing on June 26, 2026.

Background

Plaintiffs Chelcie M. Goedken and Hope Hilton seek preliminary approval of a class action and PAGA settlement with Defendant East Bay Integrated Care, Inc., a California hospice care provider ("Defendant"). Goedken worked as an hourly, non-exempt RN Case Manager from August 2020 to March 2021, and Hilton worked as an hourly, non-exempt Spiritual Care Coordinator from October 2020 to July 2021. Goedken filed separate class and PAGA actions on December 28, 2021, and Hilton was added as a named plaintiff in October 2023. The operative complaint alleges violations of the California Labor Code and Business and Professions Code Section 17200, including unpaid overtime, meal and rest period premiums, minimum wages, untimely payment of wages, non-compliant wage statements, failure to maintain payroll records, and unreimbursed business expenses.

The proposed settlement creates a non-reversionary Gross Settlement Amount of \$945,000. The settlement class consists of approximately 600 current and former non-exempt, hourly employees who worked for Defendant in California during the Class Period from December 28, 2017 through September 12, 2025. From the gross amount, the settlement allocates \$315,000 in attorneys' fees, up to \$30,000 in litigation costs, approximately \$11,000 in settlement administration costs, \$20,000 in total Class Representative Enhancement Payments (\$10,000 each to Goedken and Hilton), and a \$40,000 PAGA settlement, leaving a Net Settlement Fund of \$529,000 for distribution to participating class members.

Class Members will receive automatic *pro-rata* payments from the Net Settlement Fund based on the number of weeks worked during the Class Period, without submitting claim forms. This allocation

method provides proportionally larger payments to employees who worked longer durations. The average net recovery is approximately \$880 per Class Member. The settlement provides for conditional certification of the Settlement Class, appointment of Goedken and Hilton as class representatives, appointment of Capstone Law APC and Lawyers for Justice, P.C. as Class Counsel, and appointment of CPT Group, Inc. as Settlement Administrator.

The PAGA component covers all non-exempt, hourly employees who worked during the PAGA Period from December 28, 2020 through September 12, 2025. Of the \$40,000 PAGA settlement, 75% (\$30,000) will be paid to the Labor and Workforce Development Agency, and 25% (\$10,000) will be distributed to PAGA Members on a pro-rata basis according to weeks worked during the PAGA Period. Like the class component, PAGA payments will be automatic without requiring claim submissions.

In exchange for the settlement consideration, participating Class Members will release all claims arising from the alleged Labor Code violations, including claims for unpaid overtime, meal and rest period premiums, minimum wages, untimely wages, non-compliant wage statements, record-keeping violations, unreimbursed business expenses, and UCL claims. PAGA Members will similarly release PAGA claims arising during the PAGA Period.

The settlement was negotiated at arm's length following a mediation on July 11, 2025, before Daniel Turner, Esq., with continued guidance through a mediator's proposal. Plaintiffs calculate Defendant's realistic exposure at trial at approximately \$3.54 million, including estimated liability for off-the-clock work, meal and rest period violations, overtime, business expenses, wage statements, final pay violations, and PAGA penalties. Defendant maintains it has always maintained legally compliant employment policies and denies any liability or wrongdoing.

Defendant disputes liability on multiple grounds, contending that its policies prohibit off-the-clock work and that individualized inquiries would be required to determine whether any violations occurred. Defendant also relies on *Brinker Restaurant Corp. v. Superior Court* (citation omitted) to assert it had no obligation to guarantee meal periods were taken. The Parties agree that the settlement represents a fair, adequate, and reasonable compromise that avoids the risks of continued litigation, including potential denial of class certification, trial uncertainty, and appellate reversals, while providing immediate relief to Class Members.

Analyses

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th

1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, \$315,000, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs in the amount of \$30,000 and the requested representative payment of \$10,000 for each plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

1. The Court finds that this settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. The motion is **granted**.
2. Counsel is directed to prepare an order reflecting this ruling, attaching a copy of this tentative ruling, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
3. Plaintiffs’ counsel are ordered to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b).
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney’s fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release of the remaining 5% fees through an unreported minute order without hearing upon review and approval of the compliance statement.
6. No appearance is required at the hearing on June 24, 2026.
7. The case management conference calendared for July 24, 2026 is **vacated**.